

25VECV07301 25VECV07301

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-08-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CT%2C08%2F10%2F2026

Source SHA-256: 97153de7df91ea71964dc9e4aa5b13bf38212b75d4f9fb8786f092c701e98a01

Case Number: 25VECV07301 Hearing Date: August 10, 2026 Dept: T

25VECV07301 Basmadjian v Tarzana - revised tentative

[TENTATIVE] ORDER: The Court CONTINUES

the hearing on this motion to _____. Moving Defendants have until _____ to file a supplemental supporting declaration.

If filed before the hearing on Monday, the court will consider the declaration.

Discussion

The party bringing a motion for good faith settlement must provide the court with declarations or other evidence demonstrating the facts necessary to evaluate the settlement in terms of the Tech-Bilt factors. (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1261 [emphasis added].) Then, if opposed, the burden of proof shifts to a non-settling objecting party to demonstrate the settlement lacks good faith. (CCP § 877.6(d); Abbott Ford, Inc. v. Superior Court (1987) 43 Cal.3d 858, 895.) Here, Moving Defendants' motion is unopposed, so the Court only needs to analyze the relevant Tech-Bilt factors.

In Tech-Bilt, the court set forth factors to consider when determining whether a settlement is made in good faith. Among them is the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial.

Moving Defendants have agreed to pay Plaintiffs \$395,000.00 as a settlement. This motion provides no declarations or

evidence demonstrating that this settlement is less than what Moving Defendants would have to pay if they were found liable at trial. The court will allow moving defendants to provide a declaration with this evidence.

The Court CONTINUES the hearing on this motion to _____. Moving Defendants have until ____ to file a supplemental supporting declaration.

IT IS SO ORDERED, Moving Defendants TO
GIVE NOTICE.